

FREEDOM OF INFORMATION ACT REQUEST

To: United States Department of Justice Civil Division, FOIA/PA Officer Also submitted to: Executive Office for United States Attorneys (EOUSA), and the United States Attorney's Office, Northern District of Oklahoma

From: Jay Puckett, Principal Security Researcher Obsidian Watch Group
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Date: [DATE]

Re: Records concerning the dismissal of United States v. 250,000 Filled Bottles of Liquid Product, No. 4:23-cv-00168-GAG-CDL (N.D. Okla.)

This is a request under the Freedom of Information Act, 5 U.S.C. Section 552.

BACKGROUND

In April 2023, at the request of the Food and Drug Administration, United States Marshals seized more than 250,000 units of kratom-containing product and more than 1,000 kilograms of bulk kratom, valued at approximately \$3 million, from Botanic Tonics, LLC in Broken Arrow, Oklahoma. The government commenced the above in rem action.

On or about 22 December 2025, the government filed a Notice of Dismissal, dismissing the action without prejudice on its own motion.

RECORDS REQUESTED

For the period 1 January 2025 to the present, all records concerning the decision to dismiss the above action, including:

1. All internal memoranda, recommendations, decision papers, and approval records relating to the decision to dismiss, including any litigation risk assessment or settlement authority memorandum.
2. All communications between the Department of Justice and the Food and Drug Administration, the Department of Health and Human Services, or the Office of the Assistant Secretary for Health concerning this action or its dismissal.
3. All communications between the Department and any person outside the federal government concerning this action or its dismissal, including communications with counsel for Botanic Tonics, LLC, and with any registered lobbyist. This request expressly includes communications with Checkmate Government Relations, Miller Strategies LLC, Holland & Knight LLP, Troutman Strategies, and any person acting on behalf of Botanic Tonics, LLC, Stop Gas Station Heroin LLC, the Global Kratom Coalition, the Kratom Trade Association, or Botanicals for Better Health and Wellness.
4. All records reflecting any contact concerning kratom or 7-hydroxymitragynine between the Department and the Executive Office of the President, the Office of Management and Budget, or the Office of the Secretary of Homeland Security.
5. Calendar entries, meeting notices, visitor logs and call logs reflecting meetings or calls concerning this action or concerning kratom or 7-hydroxymitragynine regulation generally.

6. The disposition record and any final case-closing memorandum.

FEE WAIVER REQUESTED

A fee waiver is requested under 5 U.S.C. Section 552(a)(4)(A)(iii). Disclosure is in the public interest: it concerns the government's decision to abandon a multi-million dollar enforcement action against a manufacturer in which a Cabinet-level official has disclosed a financial interest of \$500,001 to \$1,000,000, during a period in which the same product category was the subject of federal rulemaking. Obsidian Watch Group is an independent investigative organization. We seek these records for public dissemination at no charge, have no commercial interest in the outcome, and no financial interest in any company named in this request.

EXPEDITED PROCESSING REQUESTED

Expedited processing is requested under 5 U.S.C. Section 552(a)(6)(E). There is an urgency to inform the public: the Department of Health and Human Services has an open Request for Information on the 7-hydroxymitragynine scheduling threshold (docket HHS-OASH-2026-0232) with a comment period closing 10 September 2026, and the Senate Finance Committee has an open inquiry with a 31 August 2026 response date. Records bearing on the government's enforcement posture toward this product category are directly relevant to both proceedings and lose public value after they close.

FORMAT

Electronic records in native format where possible. If any portion is withheld, please provide the remainder and identify each withholding with the specific exemption claimed and a Vaughn index.

Respectfully,

Jay Puckett Principal Security Researcher Obsidian Watch Group